

# **NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT BETWEEN NEXUS GROUP INC. AND VANGUARD CONSULTING LLP**

Between: **Nexus Group Inc.** (Disclosing Party) and **Vanguard Consulting LLP** (Receiving Party)

Effective Date: 2023-07-22

Termination Date: 2028-07-22

Governing Law: the laws of England and Wales

## **1. Entire Agreement**

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

## **2. Confidentiality**

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

## **3. Force Majeure**

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

## **4. Assignment**

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

## **5. Notices**

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

## **6. Intellectual Property**

All intellectual property rights in deliverables created specifically for Vanguard Consulting LLP under this Agreement shall vest in Vanguard Consulting LLP upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Nexus Group Inc. grants Vanguard Consulting LLP a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Vanguard Consulting LLP's internal business purposes.

## **7. Representations and Warranties**

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

## **8. Indemnification**

Nexus Group Inc. shall indemnify, defend, and hold harmless Vanguard Consulting LLP and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Nexus Group Inc.'s breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

## **9. Non-Solicitation**

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

## **10. Insurance**

Nexus Group Inc. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 1,92,00,000 (Rupees One crore, ninety-two lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 1,92,00,000 (Rupees One crore, ninety-two lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Nexus Group Inc. shall provide evidence of such insurance upon request.

## **11. Termination**

Either Party may terminate this Agreement by giving 15 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Vanguard Consulting LLP shall pay for all Services rendered up to the date of termination.

## **12. Severability**

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

## **13. Definitions**

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this nda Agreement dated 2023-07-22 between Nexus Group Inc. and Vanguard Consulting LLP. "Services" means the services described in Clause 11. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

**IN WITNESS WHEREOF**

**Disclosing Party**

Nexus Group Inc.

Signature: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

**Receiving Party**

Vanguard Consulting LLP

Signature: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_